

Court No. - 29

Case :- WRIT - C No. - 18756 of 2019

Petitioner :- Imran Khan

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Indra Deo Mishra, Shri Ram (Rawat)

Counsel for Respondent :- C.S.C.

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

Heard learned counsel for the parties.

The petitioner is seeking electric connection in his name in a portion of House No. 24/36, Nai Basti, Cham Cham Gali Kotwali Ward, Agra which is under his tenancy. The respondent no.2 probably declined to process the application as 'No Objection Certificate' of the landlord was not furnished and there appears to be some dispute of the petitioner with the landlord.

Learned counsel for the petitioner contents that it is incorrect to allege that there is any dispute as consent has been given by the landlady which has also been annexed as part of the writ petition.

The applications for new connections have to be processed in accordance with the provisions of Clause 4.2 to 4.4 of the U.P. Electricity Supply Code, 2005 and in the event of any litigation between the landlord and the tenant where it is not possible to obtain the consent, the electricity authorities can proceed to process the application on the tenant furnishing appropriate indemnity bond.

In view of the above, we dispose of the writ petition with the direction to the respondent no. 2 to consider the application of the petitioner for grant of new connection in accordance with the aforesaid provisions. The respondent no. 2 shall inform the petitioner of the shortcomings and the documents which may be needed and on petitioner's completing the formalities his application shall be processed and finally decided within a period of two months.

The writ petition is disposed of accordingly.

Order Date :- 29.5.2019

M.A.Ansari